

Ruling on the Demurrer

The Court sustains Cross-Defendant's demurrer to the first (breach of contract), second (fraud), and third (unjust enrichment) causes of action, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 20 days of notice of entry of this order. (CCP, §472b; CRC, rule 3.1320(g).)

11. 9:00 AM CASE NUMBER: C25-01064
CASE NAME: WILTON SHORT VS. FRANKLIN CREDIT MANAGEMENT CORP.
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: FRANKLIN CREDIT MANAGEMENT CORP.
TENTATIVE RULING:

Defendant's Hearing on Demurrer to First Amended Complaint is continued to: June 05, 2026, at 9:00 a.m.

12. 9:00 AM CASE NUMBER: C25-02606
CASE NAME: JAMEIZ TERRELL VS. BISA FRENCH
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

The Court continues the hearing on this motion to June 5, 2026 at 9:00 a.m.

13. 9:00 AM CASE NUMBER: MSC20-02420
CASE NAME: ROBINSON VS ANTIOCH UNIFIED SCHOOL
HEARING ON SUMMARY MOTION JUDGMENT/ADJUDICATION
FILED BY: ANTIOCH WATER PARK
TENTATIVE RULING:

Before the Court is Defendant City of Antioch and Antioch Water Park (collectively, "Defendants")'s motion for summary judgment ("MSJ"). The MSJ relates to Plaintiff Jayson Robinson ("Plaintiff")'s complaint for damages arising out of a drowning accident at a municipal water park. The motion relates to Plaintiff's First Amended Complaint for (1) Government Code § 815.2 (against City of Antioch) and (2) negligence (against all Defendants).

Defendants move for summary judgment or in the alternative summary adjudication on the grounds that Plaintiff's claims are barred by the assumption of risk affirmative defense.

For the following reasons, the MSJ is **denied**.

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for

deciding the Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Brief Factual and Procedural Background

Plaintiff Jayson Robinson was 11 years old on May 28, 2019 and a fifth grader at Jack London School of Antioch Unified School District when he attended a field trip to the Antioch Water Park. (Def't. UMF 1-3.) Philana Stearne signed a permission slip from the school for Plaintiff to attend the field trip which indicated Plaintiff did not know how to swim. (Walker Decl. at ¶ 6, Ex. 5.) Plaintiff became dizzy and passed out while underwater. (Def't. UMF 10,11.) Plaintiff was underwater for an unknown period of time. (Pltf. UMF 19.) He was discovered underwater by two students who felt him at the bottom of the pool near their legs. (Pltf. UMF 21.)

On the date of the incident, Plaintiff remembers stepping out and not being able to put his head above the water. Plaintiff went under the water and tried to swim back to the surface but was unable and passed out. (Pltf. UMF 23.) The children that discovered Plaintiff pulled him to the surface where they noticed he was unconscious. (Pltf. UMF 24.) The student that initially pulled Plaintiff above the water, dropped Plaintiff, at which point Plaintiff sunk back to the bottom of the pool. The students then yelled for help. (Pltf. UMF 26.) Mr. Kent, a teacher from another school, jumped off of the "lily pads" and swam to Plaintiff, pulling him above the water. Mr. Kent then took Plaintiff all the way to the side of the pool before he was finally assisted by a lifeguard. (Pltf. UMF 27.)

It is undisputed that permission slips from the school were never turned over to the Water Park, as the Water Park never requested them, or the information that was contained within. (Pltf. UMF 8.) There is no evidence that a safety briefing took place, and it is undisputed that floatation devices were not mandated. (Pltf. UMF 11.) Without a safety briefing, without a swimming assessment, and without knowledge that Plaintiff was unable to swim, Defendants permitted Plaintiffs to enter the

pool at the Water Park without a floatation device and with minimal supervision. (Pltf. UMF 14.) It is also undisputed that one of the lifeguards who was responsible for watching Plaintiff moved slowly when they were alerted of a drowning child. (Pltf. UMF 28.)

Plaintiff filed his original complaint for damages on November 24, 2020. The City of Antioch filed a Cross-Complaint against Antioch Unified School District for (1) comparative equitable indemnity; (2) total equitable indemnity; (3) express indemnity; and (4) declaratory relief on May 5, 2021. Plaintiff filed an amended complaint on November 23, 2021. On March 16, 2022 Plaintiff dismissed Defendant Antioch Unified School District. While there have been several discovery motions, this is the first substantive motion relating to the pleadings.

Analysis

As a threshold issue, Plaintiffs argue that Defendants' motion for summary judgment is defective for failure to comply with California Rule of Court Rule 3.1350.

Defendants' separate statement fails to comply with California Rules of Court, Rule 3.1350.

On a motion for summary adjudication, the separate statement must tie each "undisputed material fact" to the particular claim, defense or issue sought to be adjudicated. (Cal. Rules of Ct, Rule 3.1350(b).) Specifically, California Rules of Court, Rule 3.1350(b) states:

"If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts."

Here, the separate statement does not tie each "undisputed material fact" to the specific cause of action to be adjudicated. Instead, Defendants provide a list of "undisputed material facts" that apply to both causes of action on which Defendants seek summary adjudication.

When multiple causes of action, issues or defenses are presented for summary adjudication in one motion, each cause of action, issue or defense to which the motion is directed must have a separate section heading indicating the issue number and specifying the issue. (Cal. Rules of Ct., Rule 3.1350(d).)

Specifically, California Rules of Court, Rule 3.1350(d) states: "(1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify: [¶] (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and [¶] (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion."

This procedural deficiency makes it difficult for the court to efficiently resolve the motion, as "[t]he parties' separate statements 'are intended to permit the judge to determine quickly whether the motion is supported by sufficient undisputed facts. If the opposing statement disputes an essential

fact alleged in support of the motion, the judge merely has to review the evidence cited in support of that fact. This saves the judge from having to review all the evidentiary materials filed in support of and in opposition to the motion.” (*St. Paul Mercury Ins. Co. v. Frontier Pac. Ins. Co.* (2003) 111 Cal.App.4th 1234, 1248.)

It is within the trial court’s discretion to deny a summary judgment motion when the moving party fails to comply with the separate statement requirement. (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1189; Code Civ. Proc. § 437c, subdivision (b)(1) [“The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.”])

Notwithstanding this procedural defect, the Court reaches the merits of Defendants’ motion. Defendants are cautioned to comply with Court Rules in future filings.

Release (Express Assumption of the Risk)

First, Defendants argue that express assumption of the risk bars Plaintiff’s claims because Plaintiff and his mother signed a waiver releasing Defendants.

“‘[C]ontract principles apply when interpreting a release, and ... normally the meaning of contract language, including a release, is a legal question, not a factual question. [Citation.]’” (*Brown v. El Dorado Union High School Dist.* (2022) 76 Cal.App.5th 1003, 1023 (*Brown*), quoting *Solis v. Kirkwood Resort Co.* (2001) 94 Cal.App.4th 354, 360.)

“When an individual signs an express waiver of liability, he ‘promises not to exercise the right to sue for harm caused in the future by the wrongful behavior of a potential defendant, eliminating a remedy for wrongdoing.’” (*Brown, supra*, 76 Cal.App.5th at p. 1023, quoting *Coates v. Newhall Land & Farming, Inc.* (1987) 191 Cal.App.3d 1, 7 (*Coates*).) “Similarly, in signing an express assumption of risk, ‘the potential plaintiff agrees not to expect the potential defendant to act carefully, thus eliminating the potential defendant’s duty of care, and acknowledging the possibility of negligent wrongdoing. Both agreements permit behavior that normally would be actionable as tortious, although an express assumption of risk goes further, more clearly authorizing this behavior.’” (*Ibid.*, quoting *Coates, supra*, 191 Cal.App.3d at pp. 7-8.)

““In its most basic sense, assumption of risk means that the plaintiff, in advance, has given his express consent to relieve the defendant of an obligation of conduct toward him, and to take his chances of injury from a known risk arising from what the defendant is to do or leave undone *The result is that the defendant is relieved of legal duty to the plaintiff; and being under no duty, he cannot be charged with negligence.*” (Prosser & Keeton on Torts [(5th ed. 1984)] § 68, pp. 480-481, fn. omitted, second italics added.)” (*Brown, supra*, 76 Cal.App.5th at p. 1023, quoting *Knight v. Jewett* (1992) 3 Cal.4th 296, 338, fn. 4 (*Knight*).)

““[C]ases have consistently held that the exculpatory provision may stand only if it does not involve ‘the public interest.’” (*Brown, supra*, 76 Cal.App.5th at p. 1023, quoting *Tunkl v. Regents of University of Cal.* (1963) 60 Cal.2d 92, 96.) “Releases of negligence claims are not per se against the public interest.” (*Ibid.*, citing *Solis v. Kirkwood Resort Co.* (2001) 94 Cal.App.4th 354, 360.) “Similarly, ‘[e]xculpatory agreements in the recreational sports context do not implicate the public interest and

therefore are not void as against public policy.” (*Id.* at p. 1024, quoting *Benedek v. PLC Santa Monica* (2002) 104 Cal.App.4th 1351, 1356-1357 (*Benedek*).)

“However, ‘an agreement made in the context of sports or recreational programs or services, purporting to release liability for future gross negligence, generally is unenforceable as a matter of public policy.’” (*Brown, supra*, 76 Cal.App.5th at p. 1024, citing *City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 751.) “Thus, in the recreational context, while a waiver of liability and assumption of risk can serve as a bar to liability based on negligence, it cannot serve as a bar to liability based on gross negligence.” (*Ibid.*)

“California courts require a high degree of clarity and specificity in a Release in order to find that it relieves a party from liability for its own negligence. The release must ‘clearly, explicitly and comprehensibly set forth to an ordinary person untrained in the law that the intent and effect of the document is to release his claims for his own personal injuries and to indemnify the defendants from and against liability to others which might occur in the future as a proximate result of the negligence of [the] defendants’” [Citation omitted.]” (*Brown, supra*, 76 Cal.App.5th at p. 1024, quoting *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1488-1489, italics omitted.) “To be effective, a release need not achieve perfection; ... It suffices that a release be clear, unambiguous, and explicit, and that it express an agreement not to hold the released party liable for negligence. [Citation.]” (*Ibid.*, quoting *Nat’l & Internat. Bhd. of St. Racers, Inc. v. Superior Court* (1989) 215 Cal.App.3d 934, 938.)

““It is only necessary that the act of negligence, which results in injury to the releasor, be reasonably related to the object or purpose for which the release is given.”” [Citation.] The issue is not whether the particular risk of injury is inherent in the recreational activity to which the release applies, but rather the scope of the release. [Citations.] An act of negligence is reasonably related to the object or purpose for which the release was given if it is included within the express scope of the release. [Citation.]” (*Brown, supra*, 76 Cal.App.5th at p. 1024, quoting *Benedek, supra*, 104 Cal.App.4th at pp. 1357-1358.)

In *Brown*, the release stated in part:

In consideration for EDUHSD, allowing the above-named students to participate in the school-related activity/ies specified above, I/we voluntarily agree to release, waive, discharge, and hold harmless the EDUHSD and its trustees, officers, employees, and agents from any and all claims of liability arising out of their negligence, or any other act or omission which causes the above-named student illness, injury, death or damages of any nature in any way connected with the student's participation in the school-related activity/ies. I/We also expressly agree to release and discharge EDUHSD, its trustees, officers, employees, and agents from any act or omission of negligence in rendering or failing to render any type of emergency or medical services.

(*Brown, supra*, 76 Cal.App.5th at p. 1010.)

The Court of Appeal affirmed the trial court’s order granting the defendant’s motion for summary judgment, observing that the release signed by the student’s father “covered all allegedly negligent

acts by coaches, and any other employee or volunteer, while they were engaged in ‘coach[ing], train[ing], instruct[ing], or supervis[ing]’ in football” and “also applied to negligent acts by coaches, and any other employees or volunteers, involved in diagnosing and/or treating [the plaintiff] for potential injuries suffered while he was engaged in playing football.” (*Brown, supra*, 76 Cal.App.5th at p. 1024.)

Here, in support of Defendants’ motion for summary judgment, Defendants’ provided a true and correct copy of a “Field Trip Involving Water Activities Permission Form” signed by Plaintiff and his guardian ad litem, Philiana Stearne. That document provides in part:

Please read this document carefully before signing. It contains important information and advises of certain risks. Participant and family are asked to acknowledge and assume risks and waive claims they might have in the event of injury or other loss. This document must be signed by the Participant (student) and by at least one parent or legally appointed guardian. If the Participant (student) is over the age of 18, he/she can Sign on behalf of him/her self.

No swimming or wading shall be allowed on trips unless planned and approved in advance. Swimming in a pool at a private residence, water skiing, recreational boating, and white water rafting are strictly prohibited.

Parents/guardians must provide written permission for the students to swim and must indicate the student’s swimming ability. Lifeguards must be designated and on duty for all swimming activities. If lifeguards are not provided by the pool owner or operator, the principal shall insure their presence. Lifeguards must be certified by the American Red Cross in Adult CPR, Standard First Aid and Lifeguard Training and must be a least 21 years old.

In grades 4-6 the ratio of adult chaperones to students shall be one to eight. In grades K-3, this ratio shall become one to four. Specific supervisory responsibilities shall be determined in advance to accommodate the varying swimming abilities of students. These responsibilities shall be clarified in writing and reviewed verbally before the trip.

Staff and chaperones assigned to supervise students must wear swimsuits and be able to swim.

Students may be required to wear flotation devices depending on their age and swimming ability.

Before any students are allowed to begin any water activity, a review of the rules must be provided. The rules must be strictly enforced and particular attention given to any posted signage.

(Walker Decl. at ¶ 6, Ex. 5.)

Plaintiff argues that the above is a Permission Slip and not a wavier of liability. Specifically, Plaintiff argues that the purported release language (“Participant and family are asked to acknowledge and

assume risks and waive claims they might have in the event of injury or other loss”) does not unambiguously delineate the scope of the purported waiver, as required. (Opp. at 8:6-8 [citing *Scroggs v. Coast Community College Dist.* (1987) 193 Cal.App.3d 1399, 1404].) The Court is inclined to agree. The purported waiver is ambiguous regarding its scope. As a consequence, Defendants have not carried their initial burden of showing that ““the act of negligence, which results in injury to the releasor, [is] reasonably related to the object or purpose for which the release [was] given.”” (*Brown, supra*, 76 Cal.App.5th at p. 1024, quoting *Benedek, supra*, 104 Cal.App.4th at pp. 1357-1358; see *ibid.* [“The issue is not whether the particular risk of injury is inherent in the recreational activity to which the release applies, but rather the scope of the release. [Citations.] An act of negligence is reasonably related to the object or purpose for which the release was given if it is included within the express scope of the release. [Citation.]”].)

Defendants also attempt to impute the waiver between Teresa Romo of Kimball Elementary School and Antioch Water Park to Plaintiff. The legal basis for this argument is unclear as neither Plaintiff nor his guardian ad litem are signatories to this agreement. Additionally, Plaintiff has dismissed Antioch Unified School District as a Defendant. On reply, Defendants appear to have abandoned this argument and instead focused on primary assumption of the risk.

The Court concludes that Defendants have not carried their initial summary judgment burden on express assumption of the risk. Summary judgment on this issue is denied.

Primary Assumption of the Risk

Finally, Defendants argue that the primary assumption of the risk doctrine precludes Plaintiff’s claims.

The primary assumption of the risk doctrine bars a plaintiff’s recovery for negligence when “it can be established that, because of the nature of the activity involved and the parties’ relationship to the activity, the defendant owed the plaintiff no duty of care.” (*Neighbarger v. Irwin Industries, Inc.* (1994) 8 Cal.4th 532, 538; see also *Avila v. Citrus Community College Dist.* (2006) 38 Cal.4th 148, 161 [“[p]rimary assumption of the risk arises when, as a matter of law and policy, a defendant owes no duty to protect a plaintiff from particular harms”].) “The doctrine of ‘primary’ assumption of risk developed as an exception to the general rule that all persons have a duty to use due care to avoid injury to others. . . . Primary assumption of risk is a complete bar to recovery.” (*Childs v. County of Santa Barbara* (2004) 115 Cal.App.4th 64, 69 [citation omitted].)

“Primary assumption of the risk is an objective test. It does not depend on a particular plaintiff’s subjective knowledge or appreciation of the potential for risk. . . . Whether a duty exists ‘does not turn on the reasonableness or unreasonableness of the plaintiff’s conduct, but rather on [1] the nature of the activity or sport in which the defendant is engaged and [2] the relationship of the defendant and the plaintiff to that activity or sport.’ If a duty is found not to exist, primary assumption of risk applies, and a defendant is liable only if he intentionally injures the plaintiff or engages in conduct so reckless as to be totally outside the range of the ordinary activity involved in the sport or activity.” (*Saville v. Sierra College* (2005) 133 Cal.App.4th 857, 866 [citing *Knight v. Jewett* (1992) 3 Cal.4th 296, 313].) There is also a duty not to unreasonably increase the risks of injury to participants beyond those inherent in the activity. (*Nalwa v. Cedar Fair, L.P.* (2012) 55 Cal.4th 1148, 1162.) The doctrine of primary assumption of risk applies “where ‘conditions or conduct that otherwise might be viewed as

dangerous often are an integral part of the sport [or activity] itself.” (*Saville, supra*, 133 Cal.App.4th at p. 867 [citation omitted].)

To evaluate the applicability of the primary assumption of risk doctrine, a court must examine “the nature of the sport itself,” as well as “the defendant’s role in, or relationship to, the sport.” (*Knight, supra*, 3 Cal.4th at p. 317.) “[T]he primary assumption of risk doctrine is not limited to activities classified as sports, but applies as well to other recreational activities ‘involving an inherent risk of injury to voluntary participants . . . where the risk cannot be eliminated without altering the fundamental nature of the activity.’” (*Nalwa, supra*, 55 Cal.4th at p. 1156 [citing *Beninati v. Black Rock City, LLC* (2009) 175 Cal.App.4th 650, 658].)

In *Knight*, the California Supreme Court stated that the question when assumption of the risk doctrine is presented in summary judgment is not the reasonableness of Plaintiff’s choice to participate in the risky activity but “whether, in light of the nature of the sporting activity in which defendant and plaintiff were engaged, defendant’s conduct breached a legal duty of care to plaintiff.” (*Id.* at p. 315.)

Where the primary assumption of the risk doctrine applies, “a participant in an active sport breaches a legal duty of care to other participants—i.e., engages in conduct that properly may subject him or her to financial liability—only if the participant intentionally injures another player or engages in conduct that is so reckless as to be totally outside the range of the ordinary activity involved in the sport.” (*Id.*, at p. 320.)

“[T]he question of duty depends not only on the nature of the sport, but also on the role of the defendant whose conduct is at issue.” (*Kahn, supra*, 31 Cal.4th at p. 1004.)

Duties with respect to the same risk may vary according to the role played by particular defendants involved in the sport. In the sport of baseball, for example, although the batter would not have a duty to avoid carelessly throwing the bat after getting a hit—vigorous deployment of a bat in the course of a game being an integral part of the sport—a stadium owner, because of his or her different relationship to the sport, may have a duty to take reasonable measures to protect spectators from carelessly thrown bats. For the stadium owner, reasonable steps may minimize the risk without altering the nature of the sport.

(*Ibid.*)

Defendants argue that primary assumption of risk applies because Plaintiff was swimming recreationally and that “[g]iven swimming’s inherent risks of drowning, the doctrine of primary assumption of the risk applies.” (Motion at 8:12-13 [citing *Nalwa, supra*, at 1156-1157].) Defendants further argue that they “are not liable for a breach of their duty of care to Plaintiff unless the defendants engaged in reckless conduct that increased the dangers of swimming for him.” (*Id.* at 8:18-20 [citing *Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990].)

In opposition, Plaintiffs argue that the doctrine of primary assumption of the risk “does not apply where the public pool has a duty to the injured party.” (Opp. at § IV(C).) They argue that the water park, as a public swimming pool, had a statutory duty “to monitor and maintain the safety of its patrons at the Water Park, which it negligently failed to do.” (Opp. at 12:9-10.) Plaintiffs also argue

that the City increased the risk to Plaintiff and breached its duty by “[f]ailing to ensure lifeguards were monitoring all areas of the pool; [f]ailing to enforce flotation vest requirements for non-swimmers; [a]llowing minors into the deep end without supervision or assessment; and [d]elaying rescue response after Jayson was underwater.” (*Id.* at 13:5-9.)

On reply, Defendants argue that the statutory duties argument is not relevant for failure to plead liability under Government Code section 815.6 in the First Amended Complaint. They also argue (without citation) that “Defendants’ response to inherent risks ... does not create duty under controlling California Supreme Court authority.” (Reply at 4:4-6.) They further argue that “[a]llegations concerning supervision, staffing, or safety practices do not constitute risk-increasing conduct and therefore do not create a triable issue of material fact.” (*Id.* at 4:8-10.)

As the Court noted above, the scope of the Defendants’ initial burden is defined by the pleadings. (See *580 Folsom Assocs.*, *supra*, 223 Cal.App.3d at p. 18.) Here, the operative complaint does not plead a cause of action under Government Code section 815.6 for liability for failure to discharge statutory duty. Consequently, Plaintiffs’ reliance on statutory duties to monitor its patrons at the water park is unavailing.

However, there can be no dispute that Defendants had a duty to exercise care in the maintenance of the water park for the benefit of its patrons. (See Civ. Code § 1714 [“Everyone is responsible . . . for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself”]; see also *Rowland v. Christian* (1968) 69 Cal.2d 108, 119 [application of Civ. Code § 1714 “entails an inquiry as to ‘whether in the management of his property [the owner] has acted as a reasonable [person] in view of the probability of injury to others’ ”].) As a preliminary matter, the primary assumption of the risk doctrine applies to the activity at issue here: engaging in recreational swimming. As one court has noted, “There are risks inherent in the sport of swimming, such as drowning, hitting the wall or pool floor, or colliding with another swimmer.” (*Capri v. L.A. Fitness Intern, LLC* (2006) 136 Cal. App. 4th 1078, 1088.) This operates as a bar to plaintiff’s recovery unless the defendant owes a duty to the plaintiff and the Defendants either acted with an intent to cause injury to Plaintiff, or increased the inherent risks in the activity and acted recklessly by engaging in conduct that was totally outside the range of ordinary activity involved in the activity. [See, e.g., *Knight, supra*, 3 Cal.4th at p. 313; see also *Kahn, supra*, at 31 Cal.4th at p. 1004.]

Here, there is no indication that any of Defendants acted with an intent to cause an injury to Plaintiff. Therefore, the issue is whether there is any evidence in the record that would support a determination that Defendants increased the inherent risks in recreational swimming and acted recklessly by engaging in conduct that was totally outside the range of ordinary activity involved in recreational swimming.

The Court concludes that whether the conduct of the Defendants or other participants was so reckless as to be totally outside the range of the ordinary activity involved in the activity at issue is a question of fact (although, like other questions of fact, it can be decided as a matter of law where the facts are undisputed and only one reasonable inference can be drawn therefrom). (E.g., *Kahn, supra*, 31 Cal.4th at p. 1013; *Shin v. Ahn* (2007) 42 Cal.4th 482, 499-500 [stating that the trier of fact must “determine[e] whether defendant acted recklessly” while playing the sport of golf]; *Wellsfry v. Ocean*

Colony Partners, LLC (2023) 90 Cal.App.5th 1075, 1091 [affirming summary judgment where there was “no evidence in the record from which a reasonable trier of fact could find that [defendant] ... increased the risk of injury”]; *Foltz v. Johnson* (2017) 16 Cal.App.5th 647, 656, 661; *Luna v. Vela* (2008) 169 Cal.App.4th 102, 113 [“it is for the trier of fact to determine whether [defendant] breached his limited duty not to increase the risks inherent in the sport”].)

On this record, the Court finds that the primary assumption of the risk doctrine applies but there are triable issues of fact as to whether Defendants engaged in conduct that was reckless in that it was totally outside the range of the ordinary activity involved in supervising the recreational activity of swimming and thereby breached the limited duty not to increase the risks inherent in that activity. Specifically, whether the failure to provide a safety briefing, swimming assessment (or otherwise identify non-swimmers), or mandate or make available floatation devices increased the risk of injury inherent in swimming at the recreational water park.

The Defendants motion for summary judgment and in the alternative for summary adjudication is **denied**.

Objections to Evidence

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).) Here, there were none.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-02695
CASE NAME: CUSHMAN & WAKEFIELD U.S., INC. VS. BROOKS PEDDER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM XD CHATHAM TO REQUEST FOR ADMISSIONS, SET 1**
FILED BY: PEDDER, BROOKS
TENTATIVE RULING

Parties submitted a Joint Stipulation to continue hearing to: April 13, 2026.

15. 9:01 AM CASE NUMBER: C24-02695
CASE NAME: CUSHMAN & WAKEFIELD U.S., INC. VS. BROOKS PEDDER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM XD CHATHAM TO REQUEST FOR PROD, SET 1**
FILED BY: PEDDER, BROOKS
TENTATIVE RULING

Parties submitted a Joint Stipulation to continue hearing to: April 13, 2026.

16. 9:01 AM CASE NUMBER: C24-02695